

**To:** Board of County Commissioners

**From:** Jenny Axmacher, Planning Manager

**Hearing Date:** July 13, 2026

**Re:** BCC Hearing –Extension of Moratorium on Data Center Facilities

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### **Background**

This item was originally approved at the January 27, 2026 Admin Matters meeting at 9:00 a.m. A recording of that meeting can be found here:

<https://www.youtube.com/watch?v=XOBwdU0Q4fU>

The moratorium was then extended to August 25, 2026 during a Land Use Hearing on February 9, 2026. A recording of the meeting can be found here:

<https://www.youtube.com/watch?v=URFMFqDK0zc>

A work session to seek feedback from the Board of County Commissioners was conducted on June 29, 2026. A recording of that work session can be found here:

<https://www.youtube.com/watch?v=J0rUVvvjkB8>

Currently before the Board of County Commissions for consideration is an extension of the previously approved moratorium for six additional months or until February 25, 2027.

To date, Staff have conducted informational interviews to identify lessons learned with other jurisdictions at the municipal, county, and state levels; researched multiple example codes; compiled pertinent information from institutions and publications; and gathered perspectives from other County departments.

A University of Denver graduate student has been gathering and examining peer codes, definitions, and conducting research into common issues. Staff published a public survey to obtain public input and comments that received excellent participation.

Staff have presented to, and received feedback from, the Larimer County Environmental Science Advisory Board, Agricultural Advisory Board, and Planning Commission, and anticipate meeting with the Natural Resources Advisory Board and Economic Workforce Development Board.



In conducting this research and after meeting with the Board of County Commissioners the complexity of this issue is readily apparent. Staff appreciate that the Commissioners want to take a nuanced approach to these regulations and Staff want to make sure we have the appropriate amount of time to finish this task. While Staff is hopeful that the full six months is not needed to bring a code update, it seemed prudent to limit the number of times an extension is sought. Staff is requesting to extend the moratorium until February 25, 2027.

#### **Development Services Team Recommendation:**

The Development Services Team recommend that the Board of County Commissioners approve extending the moratorium until February 25, 2027, to allow staff additional time to research and propose appropriate Land Use Code regulations to govern this type of use.

#### **Suggested Motion:**

I move that the Board of County Commissioners approve the resolution to extend the temporary moratorium on data center facilities until February 25, 2027.

#### **Attachments**

- ***Attachment A – Resolution to Establish a Temporary Moratorium on Data Center Facilities***